

6 August 2021

The Directors
Thomas Empire Pty Ltd
Unit 1, 34 May Street,
Altona North VIC 3025

Dear Lloyd and Milani

Sale of Unit 1, 39 Powlett Street, Altona Meadows

We confirm settlement of the above matter took place on 6th August 2021

We enclose a copy of the Statement of Adjustments and confirm funds due were drawn as follows:

PEXA settlement fee	\$	117.92
Hobson Bay City Council	\$	1,374.15
City West Water	\$	615.88
State Revenue Office - Land Tax	\$	1,002.37
Mortgage - Loan payout	\$	384,646.68
Lewis O'Brien & Associates Pty Ltd	\$	925.00
Lloyd Thomas	\$	38,693.90
Total due as per Adjustments	\$	427,375.90

The Council and Water Authority have been notified of the completion of the sale.

We also take the opportunity to enclose our Statement of Account which we note has been paid.

If you have any questions arising from the above please let us know.

Yours faithfully



LEWIS O'BRIEN & ASSOCIATES PTY LTD

Enc.

HAY FROM THOMAS EMPIRE PTY LTD
PROPERTY: 1/39 POWLETT STREET, ALTONA MEADOWS

STATEMENT OF ADJUSTMENTS

DATE OF SETTLEMENT: 06/08/2021

	VENDOR	PURCHASER
Hobson Bay City Council - Rates, Charges & Levies \$1,374.15 Annually Paid to 30/06/2022 Purchaser allows 328 days		1,234.85
City West Water - Drainage \$105.56 Annually Paid to 30/06/2022 Purchaser allows 328 days		94.86
City West Water - Parks & Gardens \$80.20 Annually Paid to 30/06/2022 Purchaser allows 328 days		72.07
City West Water - Sewerage Service Charge \$222.56 Annually Paid to 30/06/2022 Purchaser allows 328 days		200.00
City West Water - Water Network Charge \$207.56 Annually Paid to 30/06/2022 Purchaser allows 328 days		186.52
REGISTRATION FEES Discharge of 1 mortgage @ \$112.40	112.40	
	\$112.40	\$1,788.30
Less Vendor's Proportion		112.40
PURCHASER TO PAY VENDOR		\$1,675.90

SETTLEMENT STATEMENT

Purchase Price:	473,000.00
Less Deposit Paid:	47,300.00
Balance:	425,700.00
Plus adjustments:	1,675.90
BALANCE DUE TO VENDOR:	\$427,375.90

SETTLEMENT CHEQUES

Hobson Bay City Council	1,374.15
City West Water	615.88
State Revenue Office	1,002.37
	424,383.50
TOTAL CHEQUES:	\$427,375.90

Prepared on: **26 July 2021**
By: **RIPPLESIDE CONVEYANCING SERVICES**
Our Ref: **FB:1444/21**
E. & O. E.

TAX INVOICE

Thomas Empire Pty Ltd
Attention: Lloyd Thomas
Unit 1, 34 May Street
ALTONA NORTH VIC 3025

Invoice Date
6 Aug 2021

Invoice Number
INV-1266

Reference
thom6-07

Lewis O'Brien &
Associates Pty Ltd
ACN 146 718 194
Suite 113, 89 High St.
Kew VIC 3101, Australia
Tel: (+61 3) 9888 6388
info@lewisobrien.com.au
ABN 57 146 718 194

Description	Amount AUD
Conveyancing - Sale of 1/39 Powlett Street, Altona Meadows To our professional costs in relation to the above matter since 6/11/2020 including receiving instructions; all correspondence and attendances; preparation of Titles Office and State Revenue Office forms to effect transfer as required; perusal of Statement of Adjustments and ancillary documents; arranging and effecting settlement; due skill, care and attention.	925.00
INCLUDES GST 10%	84.09
TOTAL AUD	925.00
Less Amount Paid	925.00
AMOUNT DUE AUD	0.00

Due Date: 6 Aug 2021

Our preferred means of payment is by direct deposit to the following account:
Account name: Lewis O'Brien and Associates
BSB : 013-414 (ANZ Bank)
Account number: 315910463

(*) Please Note - The Administration Fee will be waived if this Tax Invoice is paid within 14 days.
We reserve the right to charge interest at a rate not exceeding the Cash Rate Target, as fixed by the Reserve Bank of Australia, plus 2%, at the date the bill is issued.

Liability limited by a scheme approved under Professional Standards Legislation.

Notification of Rights

LEGAL PROFESSION UNIFORM LAW (VICTORIA) (“UNIFORM LAW”)

Your rights in relation to legal costs

The following avenues are available to you if you are not happy with this bill:

1. Discuss your concerns with us. Lewis O'Brien is designated as responsible principal for this bill.
2. Request an itemised bill. You must do this within 30 days from the date which the legal costs become payable. We will provide an itemised bill at no charge. However, if you request an itemised bill and the total amount specified in the itemised bill exceeds the amount previously specified in the lump sum bill for the same matter, then we may be able to recover the higher costs should the matter proceed to a costs assessment under section 198 or a binding determination under section 292 of the Uniform Law.
3. Have our costs assessed before the Supreme Court Costs Court (“Costs Court”) under Division 7 of Chapter 4.3 of the Uniform Law OR, alternatively, make a complaint to the Victorian Legal Services Commissioner (VLSC) in relation to a costs dispute under Division 1 of Part 5.2 of the Uniform Law. The parameters for taking such steps are as follows:
 - (i) In relation to a costs assessment before the Costs Court – you must make the application within 12 months of when the bill was given or a request for payment was made, or where there was no bill or request made, when the legal costs were paid. An application can be made outside of 12 months in certain circumstances where the delay and reasons for the delay make it just and fair to do so. There is no monetary limitation on the amount of the legal costs in relation to a costs assessment before the Costs Court.
 - (ii) In relation to a costs dispute before the VLSC – you must make the application within 60 days after the legal costs have become payable or where you have asked for an itemised bill, within 30 days after the itemised bill was provided. The VLSC may waive the time limits specified above if the complaint is made within 4 months after the required period. This is in circumstances where the delay and reasons for the delay make it just and fair to do so, provided we have not commenced legal proceedings in respect of the legal costs. There is a monetary limitation of less than \$100,000 (indexed) for the total bill for legal costs in dispute OR, where the amount is \$100,000 or more, the amount of the legal costs in dispute is less than \$10,000 (indexed).

Our rights in relation to interest

We intend to charge interest on unpaid legal costs if our costs are unpaid after 30 days of giving you this bill, in accordance with the Uniform Law. The rate of interest is the Cash Target Rate plus 2 per cent, specified by the Reserve Bank of Australia as at the date of this bill.

Notice of withdrawal of trust money

If money has been paid into our trust account for you, we hereby notify you that we will withdraw money from the trust and apply it towards payment of our legal costs that are owed, in accordance with the Uniform Law and the *Legal Profession Uniform General Rules 2015*.

Liability limited by a scheme approved under Professional Standards Legislation.

Costs disclosure form

The Uniform Law Costs Disclosure Form (the Form) gives an overall picture of the costs a client can expect pay for lower priced work. This information sheet explains what you need to know.

Why have I been given a costs disclosure form?

When you hire a law practice you must be given a written estimate of total legal costs if the lawyer's professional fee is likely to be more than \$750 (before disbursements and GST are added).

If the cost of their professional fee is unlikely to be more than \$3000 (before GST or disbursements are added) the law practice can use the Form. If you have briefed a barrister directly, the barrister can use the Form.

Is the Form a costs agreement?

The Form gives you an estimate only - it is not a costs agreement. By itself, it is not a contract between you and your lawyer.

What information does the Form give me?

The Form outlines the work to be done and gives you a single estimate of the overall cost. It includes an estimate of the lawyer's fee, and any additional costs for disbursements and GST.

What is a disbursement?

A disbursement is an expense paid by the law practice on behalf of the client. Some examples are the cost of a medical report, court filing fees or stamp duty.

What is GST?

The GST is a 10% tax on goods and services. Example: solicitor \$2000 + barrister \$1500 = a total of \$3500 which will incur an addition of \$350 GST.

How will I know the cost of the barrister or other law practice retained on my behalf?

The law practice must tell you the total estimated cost of the services of a barrister or another law practice engaged on your behalf. This information must be on the Form, with the details attached.

How can I make an informed choice?

To enable you to make an informed choice about your legal options, the law practice must explain the work proposed and the estimated costs. Costs must be fair and reasonable.

You may need to consider other factors, such as the risks involved.

What happens if the costs increase?

You must be informed in writing if there is a significant change in circumstances, including the legal costs you will need to pay. If the professional fee is likely to be more than \$3000, you must be given full disclosure of costs in writing.

What are my rights as a consumer?

The Uniform Law gives you certain rights in relation to legal costs, billing for legal services and complaints. You can:

- **Ask for the Form to be explained** – You are entitled to have the information on the Form explained to you.
- **Negotiate a costs agreement** – Let the law practice know if you would prefer a costs agreement. A costs agreement is more detailed and can be enforced like a contract.
- **Negotiate how you want to be billed** – This might be every month or when specific tasks have been completed or in some other way.
- **Request a written progress report of costs incurred** - You are entitled to progress reports within a reasonable time and at no extra charge.
- **Receive a written bill for work done** – You must receive a written bill for the work done. You can be given the bill in person, by post or by email.
- **Request an itemised bill** – You can ask for a lump sum bill to be itemised. You must ask for this within 30 days of the bill being payable. It must be provided within 21 days of your request. You must not be charged for the preparation of an itemised bill.
- **Ask for help from the local regulatory authority** – Talk to your legal practitioner first if you are not happy about the costs you have been charged. If you are still not satisfied you can contact the Legal Services Commissioner in your State.

Legal Services Commissioners

Victoria: 1300 796 344 (toll free) www.lsbcc.vic.gov.au

NSW: 1800 242 958 (toll free) www.olsc.nsw.gov.au